

INTELLECTUAL PROPERTY RIGHTS AND PATENTS

PATENTABILITY DECISION TREE → DISCOVERY INVENTION PRODUCT PROCESS → TERM AND TERRITORIALITY MAP → INDIAN PATENT PROCEDURE RAIL → INSTITUTION AND FORUM ROUTER → PUBLIC-INTEREST SAFEGUARD LADDER

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g2 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 PATENTABILITY DECISION TREE

PATENTABILITY DECISION TREE CLAIMED SUBJECT MATTER PRODUCT OR PROCESS? ABSENT FROM PRIOR ART INVENTIVE STEP NON-OBVIOUS TECHNICAL ADVANCE ECONOMIC SIGNIFICANCE INDUSTRIAL APPLICATION

CLAIMED SUBJECT MATTER → product or process?

NOVELTY → absent from prior art

INVENTIVE STEP → non-obvious technical advance / economic significance

INDUSTRIAL APPLICATION → capable of being made or used in industry

CONCEPT / ARCHITECTURE

- CLAIMED SUBJECT MATTER → product or process?
- NOVELTY → absent from prior art

MECHANISM / APPLICATION

- INVENTIVE STEP → non-obvious technical advance / economic significance
- INDUSTRIAL APPLICATION → capable of being made or used in industry

READINESS / STATUS LIMIT

- SECTIONS 3 / 4 → excluded subject matter still fails
- CLAIMED SUBJECT MATTER → product or process?

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTIONS 3 / 4 → excluded subject matter still fails.

01

STAGE 01 DISCOVERY INVENTION PRODUCT PROCESS MATRIX

DISCOVERY INVENTION PRODUCT PROCESS MATRIX FINDING; NOT AUTOMATICALLY AN INVENTION QUALIFYING NEW PRODUCT OR PROCESS PRODUCT PATENT CLAIMED THING PROCESS PATENT CLAIMED METHOD INDIA PHARMA

SYSTEM / DEVICE / INSTITUTION

- DISCOVERY → finding; not automatically an invention
- INVENTION → qualifying new product or process

DECISIVE TECHNICAL DISTINCTION

- PRODUCT PATENT → claimed thing
- PROCESS PATENT → claimed method

STATUS / UNIT / EVIDENCE LIMIT

- INDIA PHARMA / FOOD / CHEMICALS → process-only 1970-2004; product from 01 JAN 2005
- DISCOVERY → finding; not automatically an invention

SYSTEM / DEVICE / INSTITUTION

- DISCOVERY → finding; not automatically an invention
- INVENTION → qualifying new product or process

DECISIVE TECHNICAL DISTINCTION

- PRODUCT PATENT → claimed thing
- PROCESS PATENT → claimed method

STATUS / UNIT / EVIDENCE LIMIT

- INDIA PHARMA / FOOD / CHEMICALS → process-only 1970-2004; product from 01 JAN 2005
- DISCOVERY → finding; not automatically an invention

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INDIA PHARMA / FOOD / CHEMICALS → process-only 1970-2004; product from 01 JAN 2005.

02

STAGE 02 TERM AND TERRITORIALITY MAP

TERM AND TERRITORIALITY MAP FILING DATE 20-YEAR TERM CLOCK INDIAN GRANT ENFORCEABLE TERRITORIAL INDIAN RIGHT PARIS ROUTE SELECTED FOREIGN FILINGS PCT ROUTE

FILING DATE → 20-YEAR TERM CLOCK

INDIAN GRANT → enforceable territorial Indian right

DIRECT / PARIS ROUTE → selected foreign filings

PCT ROUTE → common international application procedure

CONCEPT / ARCHITECTURE

- FILING DATE → 20-YEAR TERM CLOCK
- INDIAN GRANT → enforceable territorial Indian right

MECHANISM / APPLICATION

- DIRECT / PARIS ROUTE → selected foreign filings
- PCT ROUTE → common international application procedure

READINESS / STATUS LIMIT

- NATIONAL / REGIONAL OFFICE → final grant decision
- FILING DATE → 20-YEAR TERM CLOCK

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NATIONAL / REGIONAL OFFICE → final grant decision.

03

STAGE 03 INDIAN PATENT PROCEDURE RAIL

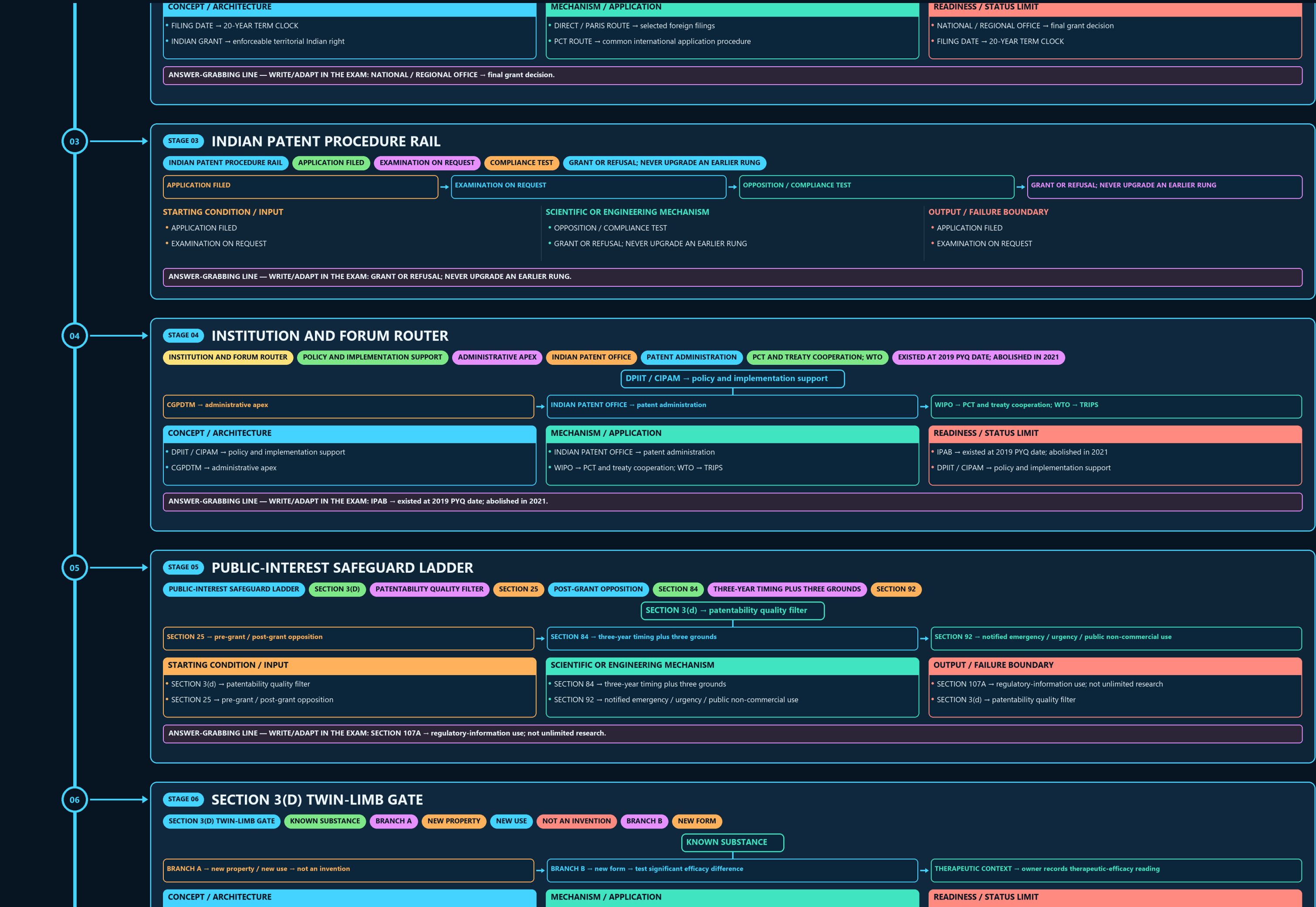
INDIAN PATENT PROCEDURE RAIL APPLICATION FILED EXAMINATION ON REQUEST COMPLIANCE TEST GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG

APPLICATION FILED

EXAMINATION ON REQUEST

OPPOSITION / COMPLIANCE TEST

GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTION 107A → regulatory-information use; not unlimited research.

06

STAGE 06 SECTION 3(D) TWIN-LIMB GATE

SECTION 3(D) TWIN-LIMB GATE KNOWN SUBSTANCE BRANCH A NEW PROPERTY NEW USE NOT AN INVENTION BRANCH B NEW FORM

KNOWN SUBSTANCE

BRANCH A → new property / new use → not an invention

BRANCH B → new form → test significant efficacy difference

THERAPEUTIC CONTEXT → owner records therapeutic-efficacy reading

CONCEPT / ARCHITECTURE

- KNOWN SUBSTANCE
- BRANCH A → new property / new use → not an invention

MECHANISM / APPLICATION

- BRANCH B → new form → test significant efficacy difference
- THERAPEUTIC CONTEXT → owner records therapeutic-efficacy reading

READINESS / STATUS LIMIT

- TRAP → never transfer the new-form exception to a new-use claim
- KNOWN SUBSTANCE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → never transfer the new-form exception to a new-use claim.

07

STAGE 07 PCT WIPO TRIPS WTO SPLIT

PCT WIPO TRIPS WTO SPLIT INTERNATIONAL PATENT-APPLICATION PROCEDURE ADMINISTERS PCT AND OTHER IP TREATIES MINIMUM STANDARDS PLUS FLEXIBILITIES MONITORING AND MEMBER-TO-MEMBER DISPUTE SETTLEMENT AUTOMATIC UNIVERSAL PATENT GRANT

SYSTEM / DEVICE / INSTITUTION

PCT → international patent-application procedure
WIPO → administers PCT and other IP treaties

DECISIVE TECHNICAL DISTINCTION

TRIPS → minimum standards plus flexibilities
WTO → monitoring and member-to-member dispute settlement

STATUS / UNIT / EVIDENCE LIMIT

NONE → automatic universal patent grant
PCT → international patent-application procedure

SYSTEM / DEVICE / INSTITUTION

- PCT → international patent-application procedure
- WIPO → administers PCT and other IP treaties

DECISIVE TECHNICAL DISTINCTION

- TRIPS → minimum standards plus flexibilities
- WTO → monitoring and member-to-member dispute settlement

STATUS / UNIT / EVIDENCE LIMIT

- NONE → automatic universal patent grant
- PCT → international patent-application procedure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: WIPO → administers PCT and other IP treaties.

08

STAGE 08 TRADITIONAL KNOWLEDGE PROTECTION CHAIN

TRADITIONAL KNOWLEDGE PROTECTION CHAIN CODIFIED MEDICINAL KNOWLEDGE TKDL DOCUMENTATION SEARCHABLE PRIOR ART FOR PATENT OFFICES RESIST WRONGFUL NOVELTY CLAIMS DEFENSIVE DISCLOSURE IS NOT A PATENT OR AUTOMATIC BENEFIT

STARTING CONDITION / INPUT

- CODIFIED MEDICINAL KNOWLEDGE
- TKDL DOCUMENTATION

SCIENTIFIC OR ENGINEERING MECHANISM

- SEARCHABLE PRIOR ART FOR PATENT OFFICES
- RESIST WRONGFUL NOVELTY CLAIMS / BIOPIRACY

OUTPUT / FAILURE BOUNDARY

- LIMIT → defensive disclosure is not a patent or automatic benefit sharing
- CODIFIED MEDICINAL KNOWLEDGE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → defensive disclosure is not a patent or automatic benefit sharing.

09

STAGE 09 IP BOUNDARY WHEEL

IP BOUNDARY WHEEL TECHNICAL FUNCTION ORIGINAL EXPRESSION, NOT IDEA COMMERCIAL-SOURCE IDENTIFIER COLLECTIVE PLACE-LINKED GOODS VISUAL APPEARANCE, NOT TECHNICAL FUNCTION MUST REMEMBER PATENT ANALYSIS SEPARATES PATENTABLE SUBJECT MATTER, NOVELTY, INVENTIVE

PATENT → invention / technical function

COPYRIGHT → original expression, not idea

TRADEMARK → commercial-source identifier

GI → collective place-linked goods

DESIGN → visual appearance, not technical function

SYSTEM / DEVICE / INSTITUTION

- PATENT → invention / technical function
- COPYRIGHT → original expression, not idea

DECISIVE TECHNICAL DISTINCTION

- TRADEMARK → commercial-source identifier
- GI → collective place-linked goods

STATUS / UNIT / EVIDENCE LIMIT

- DESIGN → visual appearance, not technical function
- MUST REMEMBER: Patent analysis separates patentable subject matter, novelty, inventive...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Patent analysis separates patentable subject matter, novelty, inventive.

10

STAGE 10 LIFE MATERIAL AND SOFTWARE FILTER

